

Amendment No. 35

Assembly Amendment to Senate Bill No. 10 First Reprint (BDR 10-38)

Proposed by: Speaker of the Assembly

Amendment Box: Replaces Amendment No. 33.

Amends: Summary: No Title: No Preamble: No Joint Sponsorship: No Digest: Yes

Adoption of this amendment will MAINTAIN the 2/3s majority vote requirement for final passage of S.B. 10 R1 (§ 2).

ASSEMBLY ACTION			Initial and Date	SENATE ACTION			Initial and Date		
Adopted	☐	Lost	☐	_____	Adopted	☐	Lost	☐	_____
Concurred In	☐	Not	☐	_____	Concurred In	☐	Not	☐	_____
Receded	☐	Not	☐	_____	Receded	☐	Not	☐	_____

EXPLANATION: Matter in (1) ***blue bold italics*** is new language in the original bill; (2) variations of **green bold underlining** is language proposed to be added in this amendment; (3) ~~red-strikethrough~~ is deleted language in the original bill; (4) ~~purple double strikethrough~~ is language proposed to be deleted in this amendment; (5) **orange double underlining** is deleted language in the original bill proposed to be retained in this amendment.

HAC



Date: 11/19/2025

S.B. No. 10—Revises provisions relating to real property. (BDR 10-38)



SENATE BILL NO. 10—SENATOR CANNIZZARO

NOVEMBER 18, 2025

Referred to Select Committee on Jobs and Economy

SUMMARY—Revises provisions relating to real property. (BDR 10-38)

FISCAL NOTE: Effect on Local Government: May have Fiscal Impact.
Effect on the State: Yes.

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EXPLANATION – Matter in ***bolded italics*** is new; matter between brackets ~~omitted material~~ is material to be omitted.

AN ACT relating to real property; limiting, with certain exceptions, the total aggregate number of units of residential real property in this State that may be purchased in any 1 calendar year by certain corporate investors; requiring, with certain exceptions, certain corporate investors in residential real property in this State to register with the Securities Division of the Office of the Secretary of State before purchasing a unit of residential real property; requiring the Securities Division to create and maintain a database that tracks the aggregate number of units of residential real property purchased by certain corporate investors; requiring certain corporate investors to report to the Secretary of State certain information concerning each purchase of a unit of residential real property; providing that certain purchases of residential real property are void; authorizing the Attorney General to bring certain actions; requiring the Secretary of State to establish requirements for the form and contents of an instrument that creates a life estate; prohibiting a county recorder from recording certain deeds and documents under certain circumstances; and providing other matters properly relating thereto.

Legislative Counsel's Digest:

Section 1.5 of this bill declares that: (1) the State has certain compelling interests related to attainable housing, stabilizing neighborhoods and supporting certain housing programs; (2) ensuring a fair and competitive housing market is necessary to support certain public interests; (3) preserving the stability and character of the State's communities is essential; and (4) reducing speculative investment in residential real estate by certain buyers is necessary to further certain public interests.

Section 2 of this bill provides, with certain exceptions, that: (1) the total aggregate number of units of residential real property in this State that may be purchased in any 1 calendar year by corporations, foreign corporations, multinational corporations, pooled investment vehicles, limited-liability companies and any affiliates of such entities must not exceed 1,000 units; and (2) a corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity is prohibited from purchasing any unit of residential real property in this State if, as a result of the purchase, the total aggregate number of units of residential real property purchased in this

State during the current calendar year by any corporations, foreign corporations, multinational corporations, pooled investment vehicles, limited-liability companies and affiliates of such entities would exceed 1,000 units.

Section 2 also requires the Securities Division of the Office of the Secretary of State to create and maintain: (1) a registry of corporations, foreign corporations, multinational corporations, pooled investment vehicles, limited-liability companies and any affiliates of such entities that purchase or own residential real property in this State and; (2) a database that tracks the aggregate number of units of residential real property purchased annually by corporations, foreign corporations, multinational corporations, pooled investment vehicles, limited-liability companies and any affiliates of such entities. **Section 2** requires, with certain exceptions, a corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or any affiliate of such an entity to register with the Securities Division before the entity purchases any unit of residential real property in this State. **Section 2** exempts from that requirement a corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity that owns fewer than 15 units of residential real property in this State. **Section 2** further requires each corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity to report to the Secretary of State certain information related to each purchase of a unit of residential real property in this State within 10 business days after the completion of such a purchase. **Section 2:** (1) requires the Secretary of State to immediately update the database that tracks the aggregate number of units of residential real property purchased annually and reduce the available annual allotment; (2) requires the Secretary of State to provide certain periodic reports to each county recorder or his or her designee related to such purchases to ensure compliance with certain provisions related to deeds; (3) authorizes the Secretary of State to establish certain reasonable fees; and (4) requires the Secretary of State to adopt regulations necessary to carry out the provisions of **section 2**. For the purposes of **section 2**, the term "corporation" does not include a family trust company or a housing authority.

Section 2.5 of this bill provides that: (1) any purchase of a unit of residential real property that violates **section 2** is void; and (2) if a deed for a transaction that violates **section 2** is recorded, the deed is subject to nullification. **Section 2.5** authorizes: (1) the Secretary of State to investigate any potential violations of **section 2** and disclose certain information to the Attorney General; and (2) the Attorney General to initiate legal proceedings to enforce the provisions of **section 2.5**. **Section 3** of this bill authorizes the Attorney General, upon the request of the Secretary of State, to bring an action against an entity that violates or proposes to violate the provisions of **section 2** to obtain an injunction or other equitable relief appropriate to ensure compliance with or enforce the provisions of **section 2**.

Existing law sets forth the requirements for recording certain documents that relate to real property. (NRS 111.312) **Section 5** of this bill prohibits a county recorder from filing a deed for a unit of residential real property purchased by a corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity unless the entity submits to the county recorder for recording, concurrently with the deed to be recorded, a copy of the certificate of registration for that purchase issued by the Secretary of State pursuant to **section 2**. **Section 5** requires a county recorder to provide to the Secretary of State upon request certain information relating to the requirement imposed by **section 2**.

Section 4 of this bill requires the Secretary of State to adopt regulations establishing requirements for the form and contents of any instrument that creates a life estate. **Section 5** prohibits a county recorder from recording a document that is such an instrument unless the document complies with those requirements. **Section 5.5** of this bill provides that the provisions of this act do not apply to the purchase of a unit of residential real property completed on or before ~~July 1, 2026.~~ **January 1, 2027.**

THE PEOPLE OF THE STATE OF NEVADA, REPRESENTED IN
SENATE AND ASSEMBLY, DO ENACT AS FOLLOWS:

Section 1. Chapter 111 of NRS is hereby amended by adding thereto the provisions set forth as sections 1.5 to 4, inclusive, of this act.

Sec. 1.5. The Legislature finds and declares that:

1. The State of Nevada has a compelling interest in:

(a) Promoting housing attainability for all of its residents;

(b) Stabilizing neighborhoods adversely affected by high-vacancy rates, foreclosure, blight or other signs of economic distress; and

(c) Supporting state or local housing programs designed to enhance community revitalization efforts;

2. Ensuring a fair and competitive housing market is necessary to provide opportunities for individual homeownership and to prevent distortions in the housing market;

3. Preserving the stability and character of the State's communities is essential to the welfare and prosperity of the residents of this State; and

4. Reducing speculative investment in residential real estate by large institutional buyers is necessary to further these public interests and to prevent housing shortages and undue increases in housing costs.

Sec. 2. 1. Except as otherwise provided in ~~subsection~~ subsections 2 and 3:

(a) The total aggregate number of units of residential real property in this State that may be purchased in any 1 calendar year by corporations, foreign corporations, multinational corporations, pooled investment vehicles, limited-liability companies and affiliates of such entities must not exceed 1,000 units.

(b) A corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or an affiliate of such an entity shall not purchase any unit of residential real property in this State if, as a result of the purchase, the total aggregate number of units of residential real property purchased in this State during the current calendar year by corporations, foreign corporations, multinational corporations, pooled investment vehicles, limited-liability companies and affiliates of such entities would exceed 1,000 units.

2. The provisions of subsection 1 do not apply to:

(a) The intracorporate sale, purchase or transfer of units of residential real property;

(b) The sale or transfer of newly constructed units of residential real property;

(c) The sale or transfer of a mobile home or manufactured home;

(d) The sale of an apartment building;

(e) The sale or acquisition of residential real property by ~~the~~ :

(1) A bank or other financial institution that is a member of the Federal Deposit Insurance Corporation or chartered by the state to conduct the business of banking; or

(2) A state or federally chartered credit union, any credit union service organization owned by such a credit union, or any wholly-owned entity of such a credit union provided that the acquisition or holding of the unit of residential real property is consistent with its charter and bylaws; ~~the~~

(f) The sale of an existing unit of residential real property that the Administrator of the Housing Division of the Department of Business and Industry determines to be in the public interest ~~the~~ ;

1 (g) The intrafamily sale or transfer of units of residential real property,
2 including, without limitation, a quitclaim deed; or

3 (h) The sale or transfer of unimproved or partially improved land.

4 3. The limitations set forth in subsection 1 do not prohibit the purchase of a
5 unit of residential property by a corporation, foreign corporation, multinational
6 corporation, pooled investment vehicle, limited-liability company or affiliate of
7 any such entity in excess of the limitation set forth in subsection 1 if:

8 (a) The Secretary of State verified using the database established pursuant to
9 this section that the purchase of the unit of residential real property would not
10 exceed the limitations set forth in subsection 1. If such a circumstance occurs,
11 the county recorder shall record the deed pursuant to NRS 111.312;

12 (b) Another corporation, multinational corporation, pooled investment
13 vehicle, limited-liability company or affiliate of any such entity closed on a unit of
14 residential property on the same day and, as a result, the purchase exceeds the
15 limitations set forth in subsection 1;

16 (c) Escrow closed on the purchase of another unit of residential property
17 being purchased by a corporation, multinational corporation, pooled investment
18 vehicle, limited-liability company or affiliate of any such entity and, as a result,
19 the purchase exceeds the limitations set forth in subsection 1; or

20 (d) The Secretary of State determines that the purchase of a unit of
21 residential real property exceeds the limitations set forth in subsection 1 but that
22 the purchase was made in good faith.

23 4. The Securities Division of the Office of the Secretary of State shall create
24 and maintain:

25 (a) A registry of corporations, foreign corporations, multinational
26 corporations, pooled investment vehicles, limited-liability companies and
27 affiliates of such entities that purchase or own residential real property in this
28 State. The Securities Division shall make the registry available on the Internet
29 website of the Office of the Secretary of State. The registry must not include
30 information relating to units of residential property that are described in
31 subsection 2 as not subject to the limitations set forth in subsection 1.

32 (b) A database that tracks the aggregate number of units of residential real
33 property purchased annually by corporations, foreign corporations, multinational
34 corporations, pooled investment vehicles, limited-liability companies and
35 affiliates of such entities. The database must not include information relating to
36 units of residential property that are described in subsection 2 as not subject to
37 the limitations set forth in subsection 1.

38 ~~4.1~~ 5. Except as otherwise provided in this subsection, a corporation,
39 foreign corporation, multinational corporation, pooled investment vehicle,
40 limited-liability company or an affiliate of such an entity must register with the
41 Securities Division of the Office of the Secretary of State before the entity
42 purchases any unit of residential real property in this State. The requirement to
43 register does not apply to a corporation, foreign corporation, multinational
44 corporation, pooled investment vehicle, limited-liability company or an affiliate of
45 such an entity that owns fewer than 15 units of residential real property in this
46 State.

47 ~~4.2~~ 6. Each corporation, foreign corporation, multinational corporation,
48 pooled investment vehicle, limited-liability company or affiliate of such an entity
49 shall report to the Secretary of State not later than 10 business days after the
50 completion of each purchase of a unit of residential real property in this State.
51 The report must include, without limitation, the address, date of purchase and the
52 purchase price of the unit of residential real property. Upon receipt of the report,

1 the Secretary of State shall immediately update the database created by
2 subsection ~~4~~ 4 and reduce the available annual allotment.

3 ~~6~~ 7. The Secretary of State shall provide periodic reports to each county
4 recorder or his or her designee, detailing each purchases of a unit of residential
5 real property by a corporation, foreign corporation, multinational corporation,
6 pooled investment vehicle, limited-liability company or an affiliate of such an
7 entity to ensure compliance with the provisions of subsections 7, 8 and 9 of NRS
8 111.312, as applicable.

9 ~~7~~ 8. The Secretary of State shall issue a certificate of registration to each
10 corporation, foreign corporation, multinational corporation, pooled investment
11 vehicle, limited-liability company or affiliate of such an entity that registers
12 pursuant to this section.

13 ~~8~~ 9. The Secretary of State may establish reasonable fees necessary for
14 the administration of this section. Such fees may only be charged to corporations,
15 foreign corporations, multinational corporations, pooled investment vehicles,
16 limited-liability companies and affiliates of such entities. The Secretary of State
17 shall remit seventy-five percent of any fees collected pursuant to this section to
18 the State General Fund.

19 ~~9~~ 10. The Secretary of State shall adopt any regulations necessary to
20 carry out the provisions of this section ~~11~~, including, without limitation, setting
21 forth a process by which the Secretary of State will address issues relating to
22 clouded titles.

23 ~~10~~ 11. As used in this section:

24 (a) "Affiliate" means any entity that directly or indirectly controls, is
25 controlled by, or is under common control with a corporation, foreign
26 corporation, multinational corporation, pooled investment vehicle, or limited
27 liability company, including any entity sharing common ownership with or acting
28 as a parent or subsidiary of such corporation, foreign corporation, multinational
29 corporation, pooled investment vehicle or limited liability company.

30 (b) "Corporation" does not include:

31 (1) A family trust company, as defined in NRS 669.042.

32 (2) A housing authority, as defined in NRS 315.021.

33 (c) "Limited-liability company" has the meaning ascribed to it in NRS
34 86.061.

35 (d) "Manufactured home" has the meaning ascribed to it in NRS 489.113.

36 (e) "Mobile home" has the meaning ascribed to it in NRS 489.120.

37 (f) "Newly constructed unit of residential real property" means a unit of
38 residential property that has not previously been occupied by an owner of the
39 unit.

40 (g) "Residential real property" includes, without limitation, a townhouse,
41 condominium, duplex and single-family home.

42 Sec. 2.5. 1. Any purchase of a unit of residential real property in violation
43 of ~~subsection 1 of~~ section 2 of this act is void and conveys no legal title to the
44 purchaser.

45 2. If a deed for a transaction made in violation of section 2 of this act is
46 recorded, that deed is subject to nullification through appropriate legal action.

47 3. The Secretary of State may investigate any potential violation of section 2
48 of this act and disclose any information or evidence concerning a potential
49 violation to the Attorney General.

50 4. The Attorney General may initiate legal proceedings to enforce the
51 provisions of this section including, without limitation, obtaining a court order to
52 nullify the deed.

1 5. *The remedy provided in this subsection is in addition to any other remedy*
2 *at law or in equity.*

3 Sec. 3. 1. *The Attorney General, upon the request of the Secretary of*
4 *State, may bring an action in any court of competent jurisdiction against an*
5 *entity that violates or proposes to violate the provisions of section 2 of this act to*
6 *obtain an injunction or other equitable relief appropriate to ensure compliance*
7 *with or enforce the provisions of section 2 of this act.*

8 2. *The provisions of this section do not abrogate or limit the right of any*
9 *person to bring any civil action pursuant to any other statute or the common law.*

10 Sec. 4. *The Secretary of State shall adopt regulations establishing*
11 *requirements for the form and contents of any instrument that creates a life*
12 *estate.*

13 Sec. 5. NRS 111.312 is hereby amended to read as follows:

14 111.312 1. The county recorder shall not record with respect to real
15 property, a notice of completion, a declaration of homestead, a restrictive covenant
16 modification form, a restrictive covenant modification document, a lien or notice of
17 lien, an affidavit of death, a mortgage or deed of trust, any conveyance of real
18 property or instrument in writing setting forth an agreement to convey real property
19 or a notice pursuant to NRS 111.3655 unless the document being recorded contains:

20 (a) The mailing address of the grantee or, if there is no grantee, the mailing
21 address of the person who is requesting the recording of the document; and

22 (b) Except as otherwise provided in subsection 2, the assessor's parcel number
23 of the property at the top left corner of the first page of the document, if the county
24 assessor has assigned a parcel number to the property. The parcel number must
25 comply with the current system for numbering parcels used by the county
26 assessor's office. The county recorder is not required to verify that the assessor's
27 parcel number is correct.

28 2. Any document relating exclusively to the transfer of water rights may be
29 recorded without containing the assessor's parcel number of the property.

30 3. The county recorder shall not record with respect to real property any deed,
31 including, without limitation:

32 (a) A grant, bargain and sale deed;

33 (b) Quitclaim deed;

34 (c) Warranty deed; or

35 (d) Trustee's deed upon sale,

36 ↪ unless the document being recorded contains the name and address of the person
37 to whom a statement of the taxes assessed on the real property is to be mailed.

38 4. The assessor's parcel number shall not be deemed to be a complete legal
39 description of the real property conveyed.

40 5. Except as otherwise provided in subsection 6, if a document that is being
41 recorded includes a legal description of real property that is provided in metes and
42 bounds, the document must include the name and mailing address of the person
43 who prepared the legal description. The county recorder is not required to verify the
44 accuracy of the name and mailing address of such a person.

45 6. If a document including the same legal description described in subsection
46 5 previously has been recorded, the document must include all information
47 necessary to identify and locate the previous recording, but the name and mailing
48 address of the person who prepared the legal description is not required for the
49 document to be recorded. The county recorder is not required to verify the accuracy
50 of the information concerning the previous recording.

51 7. *Except as otherwise provided in subsection 10, if a corporation, foreign*
52 *corporation, multinational corporation, pooled investment vehicle, limited-*
53 *liability company or affiliate of such an entity purchases a unit of residential real*

property, the county recorder shall not record the deed unless the corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity submits to the county recorder for recording, concurrently with the deed to be recorded, a copy of the certificate of registration issued by the Secretary of State pursuant to section 2 of this act for that purchase and the name of the corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity on the deed matches the name on the certificate of registration accompanying the deed.

8. If a document is an instrument that creates a life estate, the county recorder shall not record the document unless the document satisfies the requirements established by the Secretary of State pursuant to section 4 of this act.

9. The county recorder shall provide to the Secretary of State, upon request, any information collected by the county recorder relating to the provisions of subsection 7 that the Secretary of State deems necessary to determine whether the purchase of a unit of residential real property by a corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity complies with the provisions of section 2 of this act and the regulations adopted pursuant thereto.

10. The provisions of subsection 7 do not apply to a corporation, foreign corporation, multinational corporation, pooled investment vehicle, limited-liability company or affiliate of such an entity that owns fewer than 15 units of residential real property in this State.

11. As used in this section, the terms "corporation" and "limited-liability company" have the meanings ascribed to them in section 2 of this act.

Sec. 5.5. This act does not apply to the purchase of a unit of residential real property completed on or before ~~July 1, 2026,~~ January 1, 2027.

Sec. 5.7. Notwithstanding the provisions of NRS 218D.430 and 218D.435, a committee may vote on this act before the expiration of the period prescribed for the return of a fiscal note in NRS 218D.475. This section applies retroactively from and after November 13, 2025.

Sec. 6. This act becomes effective:

1. Upon passage and approval for the purposes of adopting regulations and performing any other preparatory administrative tasks that are necessary to carry out the provisions of this act; and

2. On ~~July 1, 2026,~~ January 1, 2027, for all other purposes.